

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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HERMANN TIENDREBEOGO,

Index No: 151990/2019

Plaintiff,

**AMENDED VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK,
DETECTIVE MONTALVO, INDIVIDUALLY, AND
AS A POLICE OFFICER,
JOHN AND JANE POLICE OFFICERS
NUMBERS 1 through 10,

First and/or last names(s) of John and/or Jane Does
Are fictitious and presently
Unknown; the actual names will replace the
John and Jane Does numbers 1-10
in the caption once they become known.

Defendants.

-----X
NOW COMES, Plaintiff, by and through his attorney, **RONALD PAUL HART, ESQ.**,
as and for the complaint against the Defendants, respectfully shows this Court and alleges as
follows:

PARTIES:

1) **HERMANN TIENDREBEOGO** (Hereafter Plaintiff) is presently a resident of the City
and State of New York, residing in Bronx County.

2) That, at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**,
was and still is a municipal corporation duly organized, created, and existing under and by virtue
of the laws of the City and State of New York.

3) That at all times mentioned herein, Defendant City of New York, maintained and
controlled the Police Department of the City of New York.

4) That the New York City Police Department was an agency, instrumentality, departmental and/or governmental corporation under the direction and control of the Defendant, City of New York.

5) That at all times hereinafter mentioned, Detective, ELVIS MONTALVO, is sued in his individual capacity as well as that of a detective/police officer, employed for the City of New York.

6) That at all times hereinafter mentioned, Detective ELVIS MONTALVO, was acting both in his individual and official capacities as a New York City police officer/detective when he falsely and maliciously arrested Plaintiff without probable cause.

7) Upon information and belief, at all times hereinafter mentioned, and on or prior to October 27, 2017 (DAT date), Defendant, Detective ELVIS MONTALVO, was employed by Defendant, THE CITY OF NEW YORK.

8) This is also an action under both state and federal law which arises under both the New York and United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and federal law, particularly the Civil Rights Acts, Title 42 of the United Code, Section 1983, 1981, 1988, 1985(3) et seq.,

9) This action is for malicious prosecution, false arrest, and civil rights violation under both state and federal law.

10) Each and all of the acts of the Defendants alleged herein were done in their individual capacities as well as agents, servants and employees, of the City of New York under the color State law, as police officers of said state, city and county.

PENDANT STATE CLAIMS:

11) That Notice of Plaintiff's claim for damages for False Arrest/Imprisonment, Malicious prosecution under state and federal law, civil rights violations concerning the date of, time when,

place where, and manner in which the claims arose was duly served upon the Comptroller, Defendant **CITY OF NEW YORK** on April 30th 2018, within 90 days of dismissal of the criminal charges on April 30th 2018.

12) That more than 30 days have elapsed since the Notice of Claim has been served upon Defendant **CITY OF NEW YORK** and other Defendants and said Defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose on April 30, 2018.

FIRST CAUSE OF ACTION
FALSE ARREST/FALSE IMPRISONMENT

13) The Plaintiff hereby incorporates by reference each and every preceding paragraph 1-12 of this Complaint, as though fully plead and re-alleged in their entirety below.

14) That on or about September 9, 2017, Plaintiff, then an Uber driver, was transporting a certain female passenger, Mia Defranco, who had arranged for the fare via an Uber app.

15) When Plaintiff arrived at the pre-arranged pick-up location, she unlocked the front passenger door and suddenly and unexpectedly, another female jumped into the vehicle and sat next to Plaintiff in the front seat.

16) This female passenger was crying.

17) Because the agreed upon ride was only for one person, and not the female passenger who jumped in the vehicle, Plaintiff told them he would have to cancel the ride if one of them did not exit the vehicle.

18) This female passenger reacted angrily to Plaintiff's statement by pulling out his cellphone cable from the power source, took it with her, exited the vehicle and threw it onto the ground.

19) This same passenger then proceeded to damage the side mirror of Plaintiff's vehicle.

20) When Plaintiff exited his vehicle to pick up his cell phone cable from the ground and to ask her to stop vandalizing her car, she shoved him.

21) Plaintiff then emailed or wrote Uber what happened.

22) Unknown to Plaintiff, these passengers called the New York City Police Department and filed a false report claiming Plaintiff assaulted them when he was assaulted and the victim of their abusive behavior.

23) About a month later, following this incident, Plaintiff was contacted by Detective Montalvo.

24) Plaintiff inquired what the Detective's call was about.

25) The Detective told him he needed him to come into the Precinct.

26) On or about October 27, 2017, Plaintiff went to the Precinct, was detained, fingerprinted, photographed, and given a DAT.

27) Plaintiff was falsely detained and imprisoned in the precinct for many hours. He was not free to leave the Precinct.

28) That Defendant, Detective Montalvo, knew or should have known that this passenger's complaint was false because she suffered no injuries nor were there any visible physical injuries.

29) Following Plaintiff's arraignment, no photographs or any criminal reports were given to Plaintiff's defense counsel to corroborate that the complainant sustained physical injuries.

30) The City of New York has a well-known policy of arresting and imprisoning black men on bogus criminal charges for the sole purpose of giving them a criminal record.

31) Because of Plaintiff's false arrest and detention at the precinct, he has suffered damages which exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, AGAINST THE CITY OF NEW YORK ET AL
FOR MALICIOUS PROSECUTION

32) The Plaintiff hereby incorporates by reference each and every preceding paragraph 1 through 31 inclusive as if fully plead and re-alleged herein.

33) That following Plaintiff's false arrest on October 27, 2017, he was mandated to attend several court appearances.

34) Plaintiff thereafter was forced to hire an attorney at a great expense to himself and appear many times in criminal court to defend against the subject bogus criminal charges.

35) Plaintiff appeared in Criminal Court on the following dates: January 26, 2018, February 29, 2018, March 8, 2018, and April 30, 2018.

36) On April 30, 2018, the criminal charges were dismissed on motion of the District Attorney as being without merit and speedy trial grounds.

37) The dismissal of the criminal charges against Plaintiff was a favorable termination of the criminal proceedings.

38) Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF HERMANN TIENDREBEOGO,
FOR CIVIL RIGHT ACTION 42 USC §1983:
MALCIOUS PROSECUTION

39) The Plaintiff hereby incorporates by reference each and every preceding paragraph 1 through 38 inclusive as if fully plead and re-alleged herein.

VENUE AND JURISDICTION

40) The jurisdiction of this Court is founded upon the existence of a Federal Question and upon 42 U.S.C.A SECTION 1331 AND 1343.

41) The amount in controversy exceeds \$75,000, exclusive of interest and costs.

1983 AVERMENTS

42) That prior to the Defendant Detective Elvis Montalvo and Police Officers John and Jane Does arresting Plaintiff on October 27, 2017, then maliciously prosecuting him on criminal charges wherein the alleged victim had no physical manifestation of injuries, the City of New York long ago condoned New York City Police Department's practice of violating the constitutional rights of minority citizens by turning a blind eye to such unlawful practices whereby minority citizenry were falsely arrested on such charges included assaults where there was no visible physical injury but prosecuted them nonetheless.

43) That, upon information and belief, before Plaintiff's arrest, Defendants, various New York City Police Commissioners of the New York City Police Department, approved, authorized, established, and ratified policies, procedures, and protocols for NYPD's supervisory staff City-Wide to arrest minority citizens for assaults even if no physical injuries were present.

44) The instant arrest of Plaintiff centered around a fare dispute with no visible injuries which should reveal to any experienced Detective that the subject charges were false.

45) Plaintiff appeared in court on the following dates: January 26, 2018, February 29, 2018, March 8, 2018 and April 30, 2018, when the charges were dismissed on motion of the District Attorney.

46) The dismissal of the criminal charges against Plaintiff on April 30th, 2018, was a favorable termination of the criminal proceedings.

47) Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF: EQUAL PROTECTION, VIOLATION UNDER 42 USC
1981 AND DENIAL OF EQUAL PROTECTION IN VIOLATION PURSUANT TO
ARTICLE I, § 11 OF THE NEW YORK STATE CONSTITUTION AGAINST ALL
DEFENDANTS;

48) The Plaintiff, **HERMANN TIENDREBEOGO**, hereby incorporates by reference each and every preceding paragraph 1-47 of this Complaint as though fully plead and re-alleged in their entirety below.

49) That the above facts of Plaintiff's 1983, 1985, and below 1981 Article 1, Section of the New York State Constitution constitute violations of Plaintiff's rights under the State and federal equal protection guaranteed to every citizen not be discriminated against upon the basis of Plaintiff's race, being a black male.

50) Plaintiff states that he was treated differently by NYPD because of their policies and procedure wherein the City of New York police officers do not apply the same state-wide laws fairly and evenly to minority citizens as white citizens on account of his race.

51) Plaintiff asserts that white citizens are not falsely arrested and then maliciously prosecuted for assault where the purported victim does not have any visible physical injuries.

52) These types of false arrests are only foisted upon the black citizens by Defendant City of New York and its employee police officers due to its policies, procedures, and long customs.

53) Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE FIFTH CAUSE OF ACTION
ON BEHALF OF HERMANN TIENDREBEOGO FOR CONSPIRACY PURUSANT
TO 42 USC SECTION 1985(3)

54) The Plaintiff, **HERMANN TIENDREBEOGO**, a black male, hereby incorporates by reference each and every preceding paragraph 1-53 of this Complaint as though fully plead and re-alleged in their entirety below.

55) That Detective Elvis Montalvo is a Hispanic male police officer who acted in concert with other white police officers falsely arresting and maliciously prosecuting Plaintiff on account of his race being black.

56) Plaintiff has therefore been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR THE SIXTH CAUSE OF ACTION
ON BEHALF OF HERMANN TIENDREBEOGO PURSUANT TO 42 USC
SECTION 1988 ATTORNEY FEES

57) Plaintiff hereby incorporates by reference each and every preceding paragraph 1-56 of this Complaint as though fully plead and re-alleged in their entirety below.

58) That should Plaintiff be successful on an of his federal claims, he will seek attorney fees herein together with any other relief that is deemed just appropriate.

WHEREFORE:

AS TO ALL CAUSE OF ACTIONS

- a. Compensatory damages in the sum which exceeds the jurisdictional limits of all lower courts.
- b. Punitive damages against the individually named detective in the sum which exceeds the jurisdictional limits of all lower courts.
- c. An award of reasonable attorney's fees, costs and disbursements;
- d. Plaintiff requests a trial by jury of all issues involved in this complaint;
- e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, NY 10007
March 25, 2019



Ronald Paul Hart, Esq.
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New York, NY 10007
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ATTORNEY'S AFFIRMATION

RONALD PAUL HART, P.C. are attorneys verifying the following to be true under the penalties of perjury:

1. I am an attorney at law with an office located at 225 Broadway, Ste. 2815, New York, New York 10007.
2. I submit the within verification pursuant to CPLR 3020 (d) on behalf of Plaintiff Hermann Tiendrebeogo because my law office is in a different county from where Plaintiff resides which is in Bronx County
3. I further affirm that pursuant to CPLR 3021, I have read Plaintiff's Amended Summons and Verified Complaint and same is true in all respects. The within pleading is true to the knowledge of the deponent, except as to the matters stated to be alleged on information and belief, and that as to those matters, affiant believes them to be true. This Verification is made by Plaintiff's counsel and not Plaintiff. The grounds of affiant's belief as to all matters are upon my knowledge, information and belief, investigation, legal research, a review of the court file and medical records together with conversations with Plaintiff, co-counsel and file review.

Dated: New York, New York
March 25, 2019


RONALD PAUL HART PC
225 Broadway, Suite 2815
New York, NY, 10007
Tel. (212) 766-1443

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

HERMANN TIENDREBEOGO,

Index No: 151990/2019

Plaintiff,

-against-

**AMENDED SUMMONS
AND COMPLAINT**

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AS A POLICE OFFICERS, AND
JOHN AND JANE POLICE OFFICERS
NUMBERS 1 through 10,

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in the caption once they become known.

Defendants.

RONALD PAUL HART, ESQ.

Attorney(s) for the PLAINTIFF

225 Broadway Suite 2815

New York, New York 10007

Tel. (212)766-1443

**To: ALL COUNSEL
Attorney(s) for
THE DEFENDANTS:**

**Service of a copy of the within AMENDED SUMMONS AND COMPLAINT is hereby
admitted.**

ATTORNEY(S) FOR THE DEFENDANTS